TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
FEBRUARY 22, 2021
MINUTES

Attachment 1—**STAFF REPORT**

Present: Barry Wolff, Chair, Julian Hopkins, Elliott Barrow, Stephen Wood, Stephen Duke, Megan Stevens.
Absent: Beth Santilli.
Staff: Michael Robertson, Claude Tackett, David Pagliarini, Eddie Bernard, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:00 pm.

A. Approval of Agenda

- *Mr. Wood moved for approval of the agenda. Mr. Duke seconded the motion. All in favor.*

B. Approval of Minutes

- *Mr. Wood moved for approval of the minutes. Mr. Duke seconded the motion. All in favor.*

C. Public Comment

- There being no comments, Mr. Wolff continued with the agenda.

D. General Correspondence

- All correspondence was provided to the Board and linked on the agenda.

E. Explanation of Procedures

- Mr. Wolff reviewed the procedures with the public.

F. Administration of Oath

Mr. Wolff administered the oath to those speaking.

G. Business

1. **Rehearing On Case S-2-2020, Bowman Road & Hospital Drive, TMS# 559-00-00-070, Request for Special Exception in accordance with the provisions of Section 156.326 (C) Use Conditions (5) Commercial Uses (g) Gas Station as allowed in 156.318 (D)(5)(d). CORRESPONDENCE**

- Mr. Claude Tackett, representative for the Board and the Town, read a statement for the record regarding the appeal.

- Mr. Chuck Baker, attorney for Refuel, stated that they disagree with Mr. Clackett's statement regarding the rehearing and understand the Town's objection to any new evidence being presented.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Mr. Baker, representative for Refuel, asked for additional time for their presentation. Mr. Wolff answered that the set time should be sufficient. reviewed the request with the Board. He stated that Mr. Michael McCormick, Ms. Jennifer Beale, and Mr. Mark Jordan are also present to answer any questions. Mr. Baker submitted several documents into the record for the Board to review in support of their responses to the set criteria.

- Ms. Jane Direline, 1018 Lakeview Drive, expressed objection to the request. She also expressed concern with the Circuit Court dictating how the Board should proceed. She suggested that the area should be reserved for hospital uses and not tied up by other traffic uses. She asked that the Board uphold their previous decision on this request.

- Mr. Jimmy Bagwell, 41 Vincent Drive, suggested that there was an agreement at the time the hospital was considered that the property would be reserved for hospital uses. He suggested that the request would exacerbate traffic in the area and could adversely impact emergency vehicles trying to access the hospital. He also expressed concern with drainage and that this use would impact Shem Creek. He suggested that it would be out of character for the neighborhood. He asked that the previous decision be upheld.

- Mr. Demetrius Popodopoulis, 299 Isaw Drive, stated that he previously asked that the Board deny the request. He suggested that the proposed use is not conducive to the hospital uses and would adversely affect the neighborhood. He expressed concern for child safety. He expressed concern that this would exacerbate

- Mr. Melton, 795 Wakendaw and president of the Wakendaw HOA, stated that they are opposed to the request. He expressed concern with traffic in the area and that the request would exacerbate traffic congestion. He asked that the request be denied.

- There being no further comments, Mr. Wolff closed public comments.

- The Board reviewed the documents submitted by Mr. Baker and the correspondence submitted by Mr. Popodopoulis.

- Mr. Baker gave his rebuttal to the Board based on comments made.

- Mr. McCormick reviewed the tree survey with the Board.

- *Mr. Wood moved for denial of the request considering all the evidence presented in writing and verbally received at this meeting and hearing the case de nouveau based on the following findings:*
  - *The applicant has not met the burden of proof as not all of the four required criteria outlined in §156.411 in granting a special exception have been met, and failure to meet any one of the requirements means the request cannot be approved, specifically:*
    - *As required in subsection B, there has not been sufficient evidence to establish that vehicular traffic and pedestrian movement on adjacent roads shall not be hindered or endangered*
    - *As outlined in criteria D that requires the proposed use be compatible with existing uses to the extent that it will not adversely affect the level of property values, general character or general welfare of the nearby area, because of there being a daycare and preschool, Hollings Cancer Center, Palms Retirement Center, Mount Pleasant Manor Skilled Nursing and Rehabilitation Facility, and the Marshpoint neighborhood, the request for a 12 station with car*

wash and only having one access is not compatible with the neighborhood.

Mr. Duke seconded the motion. Motion passed on a 5 to 1 vote, with Mr. Wolff, Mr. Barrow, Mr. Hopkins, Mr. Duke, and Mr. Wood in favor; Ms. Stevens opposed.

2. **Case V-5-2021, 1121 Harborgate, TMS# 517-06-00-052, Request for relief from the strict application of§156.226 and §156.227 to allow the removal of a 50-inch oak tree and encroach into the protection zones of a 21-inch oak tree and 22-inch oak tree. CORRESPONDENCE**

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Robert Alexander, owner, reviewed the request with the Board. He distributed additional documentation for the Board to review.

- Ms. Wendy Walker, 1125 Hargorgate Drive, expressed concern with the trees being removed in order to expand the home. She suggested that the addition is not a sufficient reason to remove the tree.

- Mr. John Votaw, 1127 Hargorgate Drive, suggested that the tree should preserved. He suggested that the owner was aware of the condition of the property when it was purchased. He asked that the request be denied.

- Mr. Alexander suggested that the adjacent tree referenced by Ms. Walker would not be impacted by the construction.

- There being no further comments, Mr. Wolff closed public comment.

- *Mr. Barrow moved for denial based on the findings that the conditions do apply to other properties in the vicinity; denial of the request would not prohibit use of the property, specifically that the trees were in existence when the property was purchased; the request would be a detriment to the neighborhood and adjacent property and public good. Mr. Hopkins seconded the motion. All in favor.*

3. **Case V-6-2021, 991 Scottland Drive, TMS# 535-14-00-016. Request for relief from the strict application of §156.111 to allow a 3-foot side yard setback**

for play equipment. The ordinance requires a 6-foot side yard for accessory uses and structures. CORRESPONDENCE

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Mike Sabbagh, owner, reviewed the request with the Board.

- Mr. Sam McCoy, 987 Scottland Dr, stated that he did submit correspondence to the Board regarding this request. He suggested that the applicant did not follow the bylaws of the neighborhood HOA and did not get approval from the HOA and did not contact the neighbors. He stated that he is not comfortable with the proximity of the structure to the property line as it does not meet the setback requirements.

- Mr. Sabbagh provided rebuttal to public comment. He suggested that he was not aware that approval from the HOA for the play structure was needed. He also suggested that there would be opposition from the neighbor even if it met the setback requirement.

- There being no further comments, Mr. Wolff closed public comment.

- *Mr. Barrow moved for denial based on the findings that the four conditions have not been met in that there are no extraordinary conditions, it is a self-imposed hardship, and if denied it would not prohibit use of the property. Mr. Duke seconded the motion. All in favor.*

H. Approval of Final Orders

- The Board signed final orders.

There being no further comments, the meeting adjourned at 7:39 pm.

Submitted by,
L. Lynes
BOZA02222021